

Masonic Fraternal Home
Association of OGDEN, UTAH
1240 E 20th Street
Ogden, UT 84401

BY – LAWS

Adopted at the Meeting of the Association on

(Date)

ARTICLE 1 – NAME AND PURPOSE:

The name of the Association shall be “MASONIC FRATERNAL HOME ASSOCIATION OF OGDEN, UTAH.”

The purpose of this Association shall be to form together the members of Golden Spike Lodge No. 6, F. & A.M., Unity Lodge No 18, F. & A.M. and the York Rite Bodies of Masonry in Ogden, Utah and also members of all future Masonic Lodges, into a Corporation, not for pecuniary profit, under the laws of the State of Utah.

ARTICLE II- GOVERNMENT:

The government of this Association shall be vested in its Board of Directors.

ARTICLE III – BOARD OF DIRECTORS:

Section 1 - Membership:

The membership of the Board of Directors shall be comprised of nine (9) Directors, including the three (3) Officers of the Association, in accordance with the Articles of Incorporation of the Association.

Section 2 – Meetings:

- A. The Annual Meeting of the Association shall be held on the same evening of the March Meeting of the Board of Directors on said day at the Ogden Masonic Temple. Each member of each of the Masonic Lodges and the York Rite Bodies of Masonry, which form the Association, who is present and in good standing, shall be entitled to one (1) vote. Each member shall have only one (1) vote regardless of the number of these organizations to which he may belong.
- B. Meetings of the Board of Directors shall be held on the last Friday of every month except June, July, and August at 5:30 p.m., unless the time and place is changed by the Board Officers, with all Directors being given due and timely notice thereof.

- C. Special Meetings may be called at the discretion of the President of the Board of Directors.
- D. Five (5) Directors shall constitute a quorum.
- E. The Board of Directors shall welcome attendance at regular meetings of any member from each of the Masonic Affiliated Organizations of Ogden, Utah which are not already represented on the Board of Directors.

Section 3 – Election of Directors:

- A. Election of Directors shall be at the Annual Meeting of the Association at the time and place aforementioned.
- B. At every Annual Meeting there shall be three (3) Directors; each to serve for a term of three (3) years (The purpose is to stagger the term of Directors). The three (3) Directors so elected shall fill the vacancies on the Board occasioned by the expiration of the terms of the three (3) Directors whose terms are then expiring. Of the three (3) Directors so elected, one (1) thereof shall be a member of the aforementioned two (2) Masonic Blue Lodges, and one (1) shall be a member of the York Rite Bodies, of Ogden, Utah. It shall be the objective of the members in the thus dividing membership on the Board of Directors at all times to have serving three (3) Directors from each of the two (2) Blue Lodges and three (3) Directors from the York Rite Bodies of Ogden, Utah.
- C. There shall be no requirement of bond by said Directors.
- D. Any Director may resign his office by tendering his resignation in writing to the Board of Directors, and the same shall become effectual from the time the same shall be accepted by the Board of Directors.
- E. The Board of Directors are authorized to fill any vacancy among their number occasioned by the death or resignation until the next Annual Meeting, at which time such vacancy shall be filled for the balance of said term, by vote of the members, as hereinbefore provided. In so filling a vacancy, the remaining Directors and members shall do so in such manner as to preserve the ratio of Directors as among the two (2) Blue Lodges and the York Rite Bodies of Ogden as provided in Sub-Section B of this Section.
- F. Should any Director fail to serve with diligence on behalf of this Association or should be absent from more than three (3) meetings of the Board of Directors within a period of one (1) year, without an excuse that is acceptable to the Board of Directors, the other Directors are authorized to replace such an inactive Director in a like manner as stated in Sub-Section E above.

Section 4 – Officers of the Board of Directors:

- A. Annually and immediately after election of new members to the Board of Directors, the Directors shall meet and organize and elect a new President, Vice-President, Secretary, and Treasurer from their number.
- B. Duties of Officers and Directors:
 - 1. President:
 - a. It shall be the duty of the President to preside at all meetings, to appoint all committees, with approval thereof by the Board of Directors, and to perform such other duties as usually imposed upon such officials. The term of the President shall be no more than three (3) consecutive years.
 - 2. Vice-President:
 - a. It shall be the duty of the Vice-President to replace the President in all his duties in the President's absence.
 - 3. Secretary:
 - a. It shall be the duty of the Secretary to keep a complete and accurate account of the proceedings of the meetings of the Association; to collect all monies due the Association; to disburse all money at the direction of the Officers and Directors; to keep an accurate and current account of the financial status of the Association; and to see that the books and accounts of the Association are audited annually, presenting a financial statement at each Annual Meeting for the preceding year.
 - 4. Treasurer:
 - a. It shall be the duty of the Treasurer to assist the Secretary in the performance of his duties which are relative to the finances of the Association, and to perform such other duties as assigned by the President.
 - 5. Directors:
 - a. The Board of Directors, as the governing body of this Association, shall manage, control, and delegate the affairs of the Association. They shall be responsible for the management and operation of the Ogden Masonic Temple property, and for the continued maintenance of the Temple building, its furnishings and equipment, and for the Temple grounds. It shall establish the amount of rental charges for the use of these facilities, and rules and regulations which state the acceptable manner of utilization of such facilities.

ARTICLE IV – TRUSTEES:

Trustees: There shall be three (3) Trustees on the Board. The term of a Trustee shall be three (3) years.

One (1) Trustee will be elected per year. Duties of the Trustees shall be:

- A. Supervise the investment portfolio by making decisions regarding investments adhering to this Association.
- B. Make decisions regarding the selection of a third-party financial advisor to manage this Association's investment portfolio.
- C. Report to the Board on performance of the investments.

- D. Advise the Board on long term planning for the investment portfolio in regard to cash flow for the Association.

ARTICLE V – RULES OF ORDER:

Roberts Rules of Order, latest edition, shall be recognized as the authority governing the meetings of the Association, its Board of Directors, and Committees, in all instances wherein its provisions do not conflict with these By-Laws.

ARTICLE VI – AMENDMENTS:

These By-Laws may be amended by a two-thirds majority of the voting members that are present at the Annual Meeting of the Association or at a meeting especially called for that purpose, provided that such amendment shall be presented to the Board of Directors of the Masonic Fraternal Home Association of Ogden, Utah, not later than one (1) month before the Monthly Board Meeting of the Association. The Secretary of the Board of Directors shall notify the Secretaries of each Masonic body of Ogden, Utah, of such proposed amendments no later than two (2) weeks before the meeting at which such proposed amendments will be presented.

ARTICLE VII – TAX PROVISIONS:

Section 1 – No Inurement:

No part of the net earnings of the Corporation shall inure to the benefit of, or be distributed to the Directors, Officers, or other private persons, except that the Corporation shall be authorized and empowered to pay reasonable compensation for services rendered. Notwithstanding any other provisions of these articles, the Corporation shall not carry on any other activities not permitted to be carried on:

- a. By any organization exempt from Federal Income Tax under section 501(c) of the Internal Revenue Code, or corresponding section of any future Federal Tax Code.
- b. By any organization, contribution to which are deductible under section 170(c) (2) of the Internal Revenue Code, or corresponding section of any future Federal Tax Code.

Section 2 – Dissolution:

Upon dissolution of the Corporation or the winding up of its affairs, the assets of the Corporation shall be distributed exclusively to a Masonic entity voted upon pursuant to the By-Laws or the Articles of this Corporation, which entity would at that time qualify under the provisions of Section 501(c) of the Internal Revenue Code of 1954 and its regulation as they now exist, or as they may hereafter be amended. Any assets not so disposed of shall be disposed of in accordance with a decision of the Court of the County in which the principal office of the Corporation is then located, exclusively for the purposes, or to the organization or organizations as said Court shall determine, that are at that time organized exclusively for such Masonic purposes.

Section 3 – Tax Compliance

Notwithstanding any other provision of these By-Laws, the Corporation will at all times be operated so as to be in compliance with the tax requirements which may then apply to it.

A. Distribution of Income:

- a. The Corporation shall distribute its income for each taxable year at such time and in such manner as not to become subject to the tax on undistributed income imposed by 26 U.S.C.A. #4943 of the Internal Revenue Code of 1986, or corresponding provisions of any subsequent Federal Tax Law.

These By-Laws supersede any and all previous By-Laws of this Corporation.

IN WITNESS WHEREOF the Board of Directors has adopted these Bylaws as of this _____
day of _____.

Christopher Davis, President

David B. Tingey, Most Worshipful Grand Master

Mark Shepherd, Vice President

Kenneth J Palmer, Secretary

Troy May, Treasurer

Bradly Colvell

Greg Rives

Matt Harris

William McCraw

Gregory Rives